

26VECV03413 26VECV03413

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26VECV03413 KAMRAN GOHARI vs VITALIY

KRUGLIAKOV, et al.

August 18, 2026, at 8:30 a.m.

Van Nuys Courthouse East, Dept. I

Tentative Ruling – Demurrer

I.

Background

On June

8, 2026, Plaintiff Kamran Gohari (“Plaintiff”) filed a complaint against Defendants Vitaliy Krugliakov (“Krugliakov”), Autoport, and Does 1 to 10 alleging one cause of action for unlawful detainer.

On July

7, 2026, Krugliakov filed the instant demurrer.

On August

10, 2026, Plaintiff filed his opposition.

On August

14, 2026, Krugliakov filed his reply.

II. Legal

Standard

A demurrer is a pleading that may be used to test the legal sufficiency of the factual allegations in a complaint. (Cal. Code of Civ. Proc. § 430.10.) There are two types of demurrers: general demurrers and special demurrers. (See *McKenney v. Purepac Pharmaceutical Co.* (2008) 167 Cal.App.4th 72, 77.)

General demurrers can be used to attack pleadings for failure to state facts sufficient to constitute a cause of action or for lack of subject matter jurisdiction. (CCP § 430.10(e); *McKenney*, supra, 167 Cal.App.4th at 77.) Such demurrers can be used only to challenge defects that appear on the face of the pleading or from matters outside the pleading that are judicially noticeable; evidence or extrinsic matters are not considered. (CCP §§ 430.30 and 430.70; *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318; *Donabedian v. Mercury Ins. Co.* (2004) 116 Cal.App.4th 968, 994.) To test the sufficiency of the cause of action, the Court admits “all material facts properly pleaded” and “matters which may be judicially noticed,” but does not consider contentions, deductions, or conclusions of fact or law. [Citation].” (*Blank*, supra, 39 Cal.3d at 318.) The Court gives these facts “a reasonable interpretation, reading it as a whole and its parts in their context.” (*Ibid.*) At the pleading stage, a plaintiff need only allege ultimate facts sufficient to apprise the defendant of the factual basis for the claim against him. (*Semole v. Sansoucie* (1972) 28 Cal. App. 3d 714, 721.) The face of the complaint includes exhibits attached to the complaint. (*Frantz v. Blackwell* (1987) 189 Cal.App.3d 91, 94.) “If facts appearing in the exhibits contradict those alleged, the facts in the exhibits take precedence.” (*Holland v. Morse Diesel Intern., Inc.* (2001) 86 Cal.App.4th 1443, 1447.)

III. Discussion

Krugliakov demurs to Plaintiff's complaint on the grounds that the complaint fails to state facts sufficient to constitute a cause of action; specifically, that (1) the complaint for unlawful detainer fails to allege that Plaintiff served a 15-day notice of violation of default before the 15-day notice to pay rent or quit as required by the parties' sublease, (2) the complaint fails to attach the master lease, and (3) the complaint names “Autoport” as a defendant which is not a party to any sublease attached to the complaint. (Demurrer at p. 2.)

“Service of a ‘valid three-day notice to pay rent or quit is a prerequisite to an unlawful detainer action.’ [Citation.]” (City of Alameda v. Sheehanm (2024) 105 Cal.5th 68, 75.) “[A] notice is valid only if the lessor strictly complies with the statutorily mandated notice requirements.” (Bevill v. Zoura (1994) 27 Cal.4th 894, 897.)

First, the Court addresses Krugliakov’s argument that the complaint is ambiguous because it names “Autoport” as a defendant, which is not a party to any sublease attached to the complaint. (Demurrer at 6:16-20.) Notably, the sublease attached to the complaint properly names Krugliakov. (See Complaint at Exh. 1 [Sublease].) Krugliakov may not demur on behalf of another defendant, and naming Autoport does not, by itself, render the complaint unintelligible. (See CCP § 430.10.)

Next, the Court addresses Krugliakov’s argument that “where the master lease may contain terms that are contrary to the Sublease, it renders the Complaint incomplete, uncertain and ambiguous, as the master lease may contain terms that are contrary to the attached lease.” (Demurrer at 6:11-16.) Indeed, an instrument “made part of the complaint by reference and attached thereto as exhibit, but not constituting the contract upon which the complaint is based, may not supply substantial allegations essential to the statement of a cause of action unless the pleading is framed for that purpose.” (Holly Sugar Corp. v. McColgan (1941) 18 Cal.2d 218.) Accordingly, considering the unlawful detainer is dependent upon a sublease agreement, which is in turn dependent upon the master lease agreement, the instant demurrer is sustained with leave to amend for failure to attach the master lease agreement.

In opposition, while Plaintiff disputes the accuracy of Krugliakov’s claims that Plaintiff failed to serve a 15-day notice of default (see Opposition at 3:25-5:16), Plaintiff fails to fully oppose Krugliakov’s argument that Plaintiff must have incorporated the master lease. (See Opposition at 7:8-17.) While Plaintiff argues that he is “not required to attach every document to which [the sublease] refers” (ibid.), Plaintiff fails to address any case law or Holly, supra, which is directly on point.

Finally, the Court addresses Krugliakov’s argument that the complaint for unlawful detainer fails to allege that Plaintiff served a 15-day notice of default before the 15-day notice to pay rent or quit as required by the parties’ sublease. Indeed, the sublease agreement provides that, prior to serving a notice to quit, Plaintiff shall serve a written notice of violation of default, allowing 15 days to correct the violation. (See Exh. 1

[Sublease] at p. 1.) Plaintiff provides the 15-day notice to pay rent or quit but fails to allege service of the requisite 15-day notice of default. (See generally Complaint.) While Plaintiff disputes accuracy of this argument, a notice to quit must, on its face, be valid to survive a demurrer on an unlawful detainer action. Krugliakov's demurrer is sustained on these additional grounds.

IV. Conclusion

Based on the foregoing, Krugliakov's demurrer to Plaintiff's complaint is SUSTAINED with leave to amend.

Plaintiff to file an amended complaint within 5 days of this order.

Moving party to give notice.